

Fazil v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · Writ-C No. 33304 of 2021 · **Writ disposed; petitioner relegated to 6.8 objection with stay of recovery.**

HEADNOTE

A writ challenging a recovery notice of Rs. 91,312, by a person claiming he was not the consumer of the connection, was disposed of without examining merits. Liberty was granted to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, with a short stay of coercive recovery.

FACTUAL SUMMARY

Fazil challenged a recovery notice dated 16 September 2021 issued by the distribution licensee for Rs. 91,312, alleging that the electricity connection was not in his name and that he was not the consumer. An earlier Division Bench order of 25 March 2022 had stayed coercive action pending counter-affidavit. On 26 May 2022, counsel for the licensee stated that an objection to the demand would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment — writ relegated to statutory forum

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery notice may be disposed of by granting liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after reasonable opportunity of hearing, with a time-bound stay of coercive recovery meanwhile. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

The Court directed a paragraph 6.8 objection within four weeks and a decision after hearing within the next four weeks, staying coercive action for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

assessment-6.8-alternate-remedy

The writ was disposed of without deciding whether the petitioner was the consumer or whether the Rs. 91,312 recovery was valid, relegating him to the statutory objection under paragraph 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS THE CONSUMER OF THE CONNECTION AGAINST WHICH RECOVERY OF RS. 91,312 WAS ISSUED

Court expressly declined to opine on merits. ¶ 1

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 16 SEPTEMBER 2021

¶ 1